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25-CIV-02951 ANNA MOLINA VILLALOBOS, ET AL. VS. JING LI, ET AL.

LINE 4

ANNA MOLINA VILLALOBOS
JING LI

DESMOND B. TUCK
JOSHUA F. GONZALES

DEFENDANTS JING LI AND YING LI'S MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

Defendants Jing Li and Ying Li seek an order protecting them from responding to requests for admission ("RFAs") propounded by Plaintiff Anna Villalobos in excess of the statutory limit of 35 RFAs that may be propounded without a declaration justifying additional discovery.

Defendants' Motion for a Protective Order is GRANTED.

Plaintiff's request for judicial notice of public documents related to this matter is GRANTED.

Under Code of Civil Procedure § 2033.030(a), a party may serve no more than 35 RFAs unless the excess RFAs are supported by a declaration of necessity under Code of Civil Procedure § 2033.050 that, among other things, explains why additional discovery is justified by the complexity or quantity of issues in the case. (See Code Civ. Proc., §§ 2033.030, subds. (a)-(b), 2033.040, subd. (a), 2033.050.)

Code of Civil Procedure § 2033.050 sets forth the substance of what must be included in a declaration justifying additional discovery, including the following suggested language:

This number of requests for admission is warranted under Section 2033.040 of the Code of Civil Procedure because _____. (Here state the reasons why the complexity or the quantity of issues in the instant lawsuit warrant this number of requests for admission.)

Here, Plaintiff's section 2033.050 declaration states, in relevant part:

This number of requests is warranted under section 2033.040 of the Code of Civil Procedure because the issues in this case involve matters relating to complex boundary and construction dispute. Defendant cannot properly prepare for deposition or trial without obtaining written responses to these Requests for Admission. I am informed and believe that unless written responses to these Requests for Admission are received before further discovery is conducted, substantial expense would be incurred in attempting to solicit discoverable facts by deposition.

(Gonzales Decl. Ex. C, ¶ 5 and Ex. D, ¶ 5.)

Plaintiffs argue that the declaration adequately justifies additional discovery and that a party challenging the sufficiency of the declaration would "essentially need to show that the Declarant was lying about the need for additional RFAs." (Oppo., at p. 10:6-8.) Plaintiff cites no case law for that proposition.

Plaintiffs effectively parrot the statutory language governing requests for additional discovery and make a conclusory statement that the discovery is necessary. California courts consistently reject this approach, requiring factual specifications rather than boilerplate recitations of statutory language across all discovery contexts. (See, e.g., *People ex rel. Harris v. Sarpas* (2014) 225 Cal.App.4th 1539 [finding declaration did not support oppressive and duplicative interrogatories]; *Liberty Mut. Ins. Co. v. Superior*

Ct. (1992) 10 Cal.App.4th 1282 [boilerplate interrogatories insufficient to explore precise and pivotal issues]; *Day v. Rosenthal* (1985) 170 Cal.App.3d 1125 [rejecting boilerplate interrogatories]; *Hernandez v. Superior Ct.* (2003) 112 Cal.App.4th 285 [rejecting boilerplate responses given “without much consideration to their relevance to each interrogatory”]; *W. Pico Furniture Co. of Los Angeles v. Superior Ct. In & For Los Angeles Cnty.* (1965) 56 Cal.2d 407 [finding discovery objections not supported by evidence showing specific factual circumstances]; *Williams v. Superior Ct.* (2017) 3 Cal.5th 531 [same].)

“If the responding party seeks a protective order on the ground that the number of requests for admission is unwarranted, the propounding party shall have the burden of justifying the number of requests for admission.” (Code Civ. Proc., § 2033.040, subd. (b).)

Plaintiffs’ opposition to this motion fails to establish that the additional discovery is necessary based on the complexity or quantity of issues in this lawsuit.

The crux of Plaintiffs’ First Amended Complaint is that Plaintiffs have an implied easement giving them a right of ingress and egress across a driveway on Defendant’s property for the purpose of maintaining the northerly wall of the carport on Plaintiffs’ property, and that Defendants have blocked Plaintiffs’ access to that wall by installing a gate on their property. (FAC, ¶¶ 10, 11, 16.) Plaintiffs also allege that Defendants destroyed a berm directing rainwater away from Plaintiffs’ property, the construction of which was previously permitted by the previous owner of Defendant’s property. (FAC, ¶ 30.) On their face, the claims in this matter are not complex and Plaintiff’s opposition fails to establish otherwise. Nor does it establish why the additional requests for admission are necessary as opposed to available methods of discovery.

Accordingly, Defendants’ Motion for a Protective Order is GRANTED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-07589 EDGAR STAREN, M.D., PHD, MBA VS. JAMES VETTER, ET AL.

LINE 5

EDGAR STAREN, M.D., PHD, MBA
JAMES VETTER

SCOTT BONAGOFSKY
SUSANNAH K. HOWARD

DEFENDANT TRANSMED7, LLC'S PETITION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING:

Off calendar per stipulated Order.
